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Provision of April 10, 2025
Register of provisions
n. 210 of April 10, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Dr. Claudio Filippi, acting secretary general;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation, hereinafter “Regulation”);

HAVING REGARD to the Code regarding the protection of personal data
(legislative decree June 30, 2003, n. 196), as
amended by legislative decree August 10, 2018 n. 101, containing
provisions for the adaptation of the national
legislation to the aforementioned Regulation (hereinafter
“Code”);

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the secretary
general pursuant to Article 15 of the Guarantor's
Regulation n. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

WHEREAS

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

A complaint and a report have been received by this Authority regarding the receipt
of unwanted phone calls aimed at promoting

real estate intermediation services of the Agency
“Vogliocasa Milano.” In response to the request
from the interested parties, it was stated that the contact
data of the same would have been acquired
from the company Realmaps S.r.l. (hereinafter “Realmaps”
and “supplier”). This supplier was the subject of a
separate investigation, conducted in April 2024, which
allowed for the identification of several critical issues in the
processing of personal data intended for
real estate agencies for marketing purposes (see
provision n. 11 of January 16, 2025, available at
www.gpdp.it doc. web n. 10110241).

In the context of the preliminary investigation initiated
against Vogliocasa Holding & Servizi S.r.l. (hereinafter
“Vogliocasa”) - to which the aforementioned
phone contacts seemed to be attributable -
the latter, while declaring its lack of involvement in

relation to the alleged conduct, indicated Undici S.r.l.s. (hereinafter also “Undici” or “Company”) as the author of the two communications reported in the complaints to the Authority and therefore qualifying as the data controller in question. Vogliocasa also stated - with declarations for which it is called to respond pursuant to Article 168 of the Code - that Undici would have received from Realmaps “81,185 records” including cadastral and personal data of property owners and, in particular, “of 13,265 mobile numbers as well as 7,616 landline numbers.” Considering that, from what emerged in the documents, Undici is included among the real estate agencies to which Realmaps would have provided the data for promotional purposes, on August 19, 2024, the Office formulated a request for information (ref. prot. n. 0099558/24), pursuant to Article 157 of the Code, mainly aimed at clarifying the relationships with the aforementioned supplier and to know the measures taken in

the field of personal data protection that the Company has implemented regarding the acquired lists, with particular reference to: - the verification of an original informed consent that authorized its use for commercial purposes; - the information provided during the phone calls as well as the call script used; - the verification in the Public Register of Oppositions of the contacted numbers; - the management of the opposition requests made by the interested parties. Furthermore, the Company was asked to communicate how many subjects, whose data were acquired from Realmaps, were subsequently the subject of promotional communications.

In a communication dated September 13, 2024, received by the Authority on September 18, the Company responded to the aforementioned request for information and preliminarily clarified that “at the time of the events (between October 2022 and March 2023) the legal representative of Undici S.r.l.s. was” a person different from the current one. Therefore, it appeared necessary to have a comparison with the previous legal representative of the Company “in order to clarify the dynamics of the case and the relationships with RealMaps.” Following this comparison, it emerged that the Company signed the contract with Realmaps on October 25, 2022 (of which a copy was provided) after obtaining from the said supplier verbal assurances regarding the legality of the data to be purchased and following the checks conducted on the relevant website (www.realmaps.it) and the “5-star reviews” recorded online where an article on the activity of Realmaps was found published in one of the main and well-known Italian newspapers. According to the Company, Realmaps assured that “every data was retrieved from public registers [...] and that every contact was carefully

verified”, with particular reference to the “correct acquisition of consent”; this was formalized in the contract signed with the aforementioned supplier, from which it emerged that “the data and databases transferred by RealMaps come from public lists or public registers” and, above all, from “lists for which consent to receive advertising information has been expressed in compliance with the current regulations for the protection of privacy.” Furthermore, based on the agreements made with Realmaps, the Company, “if ever necessary,” was to inform the interested parties requesting information about the origin of their data of an email address related to that supplier (dpo@realmaps.it). This circumstance was invoked in the complaint concerning the present proceedings: the Company, in response to the request of the interested party to obtain information “on the origin of the consent given” (made on February 15, 2023), stated that it had provided the aforementioned contact information, as agreed with Realmaps (response to the complainant dated March 1, 2023). The Company, invoking the exemption of “good faith,” declared that it had terminated its commercial relations with Realmaps and, clarifying that it had deleted the personal data of the applicants in the present proceedings, stated that it was unable to quantify the subjects actually contacted, estimating it to be 10/15%. Finally, it asserted that “each individual contacted [...] is regularly informed of their rights regarding the protection of personal data, including the right to object.”

2. THE CONTESTATION OF VIOLATIONS

With a note dated September 27, 2024 (prot. no. 0112694/24), the Company was informed of the initiation of the proceedings, pursuant to Article 166, paragraph 5, of the Code, for the adoption of any measures referred to in Article 58, paragraph 2, of the Regulation, recognizing Undici's responsibility for the alleged violation of the following provisions of the Regulation:

- Articles 5, paragraph 1, letter a), 6, paragraph 1, letter a), 7, 13, 14 of the Regulation and Article 130, paragraphs 3 and 3 bis, of the Code for failing to verify or document the lawfulness of the data acquired from the supplier (information and consent) and for not having checked the Public Register of Oppositions for the contacted numbers;
- Articles 12 and 15 of the Regulation as the response to requests from interested parties regarding the processing of their personal data is subject to the necessary consultation with Realmaps, which holds such information, resulting in a potential delay in fulfilling the aforementioned requests and incomplete satisfaction on the part of the requester;
- Articles 5, paragraph 2, 24, and 25 of the Regulation for failing to prove compliance with the obligations regarding the protection of personal data.

3. LEGAL ASSESSMENTS BY THE AUTHORITY

The Company did not submit defensive memoranda, nor did it request to be heard by the Authority. Based on the factual profiles highlighted above and the statements made by Undici in its response, for which the declarant is responsible pursuant to Article 168 of the Code, it is deemed appropriate to confirm the violations identified in the notice of contestation.

Undici is to be considered the data controller, pursuant to Article 4 of the Regulation, having concretely determined the purpose for which the processing was carried out (promotion of its services) and the telephone channel used for this purpose. Therefore, all obligations imposed by the regulations on the protection of personal data, as well as the responsibility for the identified violations, are directly attributable to the same Company. The change of the legal representative of Undici is irrelevant since this operation has exhausted its effects only on a civil level and not also in relation to the processing of personal data: the new legal representative has automatically succeeded in all legal relationships and in all processing carried out during the previous management, including those related to data acquired from Realmaps for promotional purposes.

That being duly clarified, it is noted that the Company has declared that it acted in complete “good faith” regarding the origin of the data and their “public” nature and, therefore, of free usability. In this regard, it is deemed appropriate to recall that the processing for marketing purposes carried out through electronic communication tools (such as the telephone) is governed by Article 130 of the Code, in implementation of Article 13 of Directive 2002/58/EC, which constitutes a *lex specialis* where the only legal basis allowed is the consent of the interested party (so-called opt-in); in the absence of such a legal basis, promotional communications cannot be made even if the personal data are taken

from public registers, lists, websites, acts, or documents known or knowable by anyone (see, in this regard, Guidelines on promotional activities and combating spam - July 4, 2013, provision no. 330, web doc no. 2542348, at www.gpdp.it).

From the documents produced, it does not appear that the Company, as the data controller, has provided documentation proving the existence of the lawfulness requirements for the personal data acquired from RealMaps. In particular, it does not appear that the issuance of the information to the interested parties by the original data controller has been verified and, therefore, proven. holder who would have acquired the data, pursuant to Article 14 of the Regulation, with only Realmaps' assurances regarding the legitimacy of the processing being documented; similarly, the alleged consent for communication to third parties (including Undici S.r.l.s.) for marketing purposes that the data subjects would have provided has not been proven, nor has it been verified whether such authorization met the requirements of freedom and specificity (as per Article 4, point 11, of the Regulation), which inevitably impacts the legitimacy of the promotional activities of the Company itself. This gap cannot even be overcome by generically referring to the terms contained in the contract signed with the supplier, which, moreover, contains a summary description of the regulations regarding personal data protection (see point 7 of the contract, titled "privacy") and the alleged consent for marketing provided by the data subjects (see paragraph "General contract conditions and terms of use of the data sales service and database provision – RealMaps.S.r.l. mapping"). It should be clarified in this regard that in no way can the provision of a contractual indemnity clause exempt the holder from carrying out the necessary activities to prove that the processing has been carried out in compliance with the principles of lawfulness, transparency, and fairness from which the provisions on legal basis and information derive.

In conclusion, the described processing has resulted in the execution of promotional phone calls without the informed consent of the data subjects, as the Company has not produced evidential documentation to substantiate its acquisition. Therefore, it is believed that the violation of Articles 5, paragraph 1, letter a), 6, paragraph 1, letter a), 7, 14 of the Regulation and Article 130 of the Code has been established, not only in relation to the two cases in this proceeding but in the overall processing carried out by Undici concerning the personal data acquired from Realmaps, of which 10-15% of the phone numbers were contacted; considering that the phone numbers provided by Realmaps total 20,881 (13,265 mobile and 7,616 landline, as communicated to Vogliocasa – see point 1 of this provision), based on what the Company stated, the contacts would have involved approximately 2-3 thousand phone numbers.

Additionally, there is a violation of Article 130, paragraphs 3 and 3 bis, of the Code in relation to Article 1, paragraph 12, of Law No. 5/2018, concerning the Company's conduct of telemarketing activities without having consulted the Register of Oppositions on a monthly basis or in any case before each promotional campaign. In the absence of evidence on this point from the Company, it must be noted that, given the promotional purpose highlighted above and the telephone medium through which communications to the data subjects are conveyed, the verification in the Register must be considered a pre-condition for correctly carrying out telemarketing activities, and the failure to consult it can only result in the impossibility of initiating any promotional campaign for which the use of the aforementioned telephone medium is foreseen.

Furthermore, the Company has not produced, as requested by the Office, the call script used for promotional contacts, nor does the documentation in the records indicate that it provided the necessary information to the data subjects pursuant to Article 13 of the Regulation to inform them of the most relevant aspects of the processing of personal data (nature, origin of the data, legal basis). In fact, information about the origin of the data and consent for processing for promotional purposes was provided to the data subject only after an explicit request (made on February 15, 2023, to which Undici provided a partial response on March 1 of the following year). Therefore, it is believed that the violation of Article 13 of the Regulation, as well as the principles of lawfulness and transparency set forth in Article 5, paragraph 1, letter a) of the same Regulation, has been established.

The Company has not clarified the methods adopted to ensure the right of opposition of the data

subjects, limiting itself to communicating that it has deleted the data transferred by Realmaps, expressing the intention to improve its personal data processing policy, particularly regarding the verification of the origin of future contacts it will possess and the consents possibly granted by the data subjects; this only after the investigation initiated by the Authority. However, from what can be understood, for a complete response to the requests of the data subjects regarding the processing of their personal data, Undici was required to engage with Realmaps, which held the information about the origin of the data and any consent for communication to third parties. This step with Realmaps was necessary to obtain information about the data but resulted in a significant distraction of time and a potential delay in satisfying the requests made. Therefore, for a timely "and without unjustified delay" response to the requests of the data subjects (pursuant to Article 12, paragraph 3, of the Regulation), this operational method did not appear functional, as it did not allow for adequate management of the requests to exercise rights, constituting a violation of Articles 12 and 15 of the Regulation. In this regard, the mere deletion of the data, as represented by the Company in its response to the Authority, does not exhaust the obligations of the holder to provide the data subjects with all the information regarding the processing of their data, from the identification of the original holder. holder who would have acquired consent for marketing up to the subjects to whom the data was or would be communicated, as well as the relevant legal bases for lawfulness, in addition to ensuring that appropriate measures have been taken to prevent further future processing (e.g., inclusion of the name in a blacklist). The treatments described above reflect a lack of adequate control and non-compliance with the regulations regarding the protection of personal data. The initiatives undertaken by the Company following the request for information from the Office (termination of commercial relations with Realmaps and deletion of the data acquired from the latter) are not sufficient to reduce the degree of responsibility in monitoring that the holder must constantly exercise during processing activities. In the absence of adequate controls over the entire processing chain (from the collection of personal data to the implementation of the promotional campaign), the marketing activity is in violation of Articles 5, paragraph 2, and 24 of the Regulation, which frame the responsibilities of the holder in a perspective of necessary enhancement of the principle of accountability aimed at demonstrating compliance with obligations regarding the protection of personal data, also taking into account the principle of privacy by design (Article 25 of the Regulation).

4. CONCLUSIONS

In light of the arguments set forth in point 3 of this provision, while acknowledging the initiatives undertaken by the Company (termination of commercial relations with Realmaps and deletion of the personal data acquired from the corporate systems), with reference to the treatments already carried out and subject to investigation, it is deemed appropriate to confirm the contested violations and it is necessary to:

- pursuant to Article 58, paragraph 2, letter d) of the Regulation, order the Company, should it intend to direct promotional activities in the future towards telephone numbers provided by third parties, to adopt suitable procedures aimed at constantly verifying, including through appropriate sample checks, that personal data are processed in full compliance with the provisions in this regard (prior acquisition of free, specific, unequivocal, documented, and informed consent from the data subjects for the sending of commercial communications) (Articles 6, 7, and 14 of the Regulation);
- pursuant to Article 58, paragraph 2, letter d) of the Regulation, order, for the purposes of the information obligation under Article 13 of the Regulation, to provide the data subjects with all the information provided therein;
- pursuant to Article 58, paragraph 2, letter d) of the Regulation, order Undici to adopt appropriate technical and organizational measures to facilitate the exercise of the rights provided by the regulations on the protection of personal data and to satisfy, without unjustified delay, the related requests, including the right to object which may be raised "at any time" by the data subject.

Finally, with regard to the treatments already carried out and considering the violations established above, it is deemed that the conditions exist for the application of an administrative pecuniary sanction pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation.

5. ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE PECUNIARY SANCTION

Based on the above, various provisions of the Regulation and the Code have been violated in relation to connected treatments carried out by Undici, for which it is necessary to apply Article 83, paragraph 3, of the Regulation, according to which, if, in relation to the same treatment or connected treatments, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation, with the consequent application of only the sanction provided for in Article 83, paragraph 5, of the Regulation.

For the purposes of quantifying the administrative sanction, the aforementioned Article 83, paragraph 5, sets the maximum penalty at the sum of 20 million euros or, for enterprises, at 4% of the worldwide annual turnover of the previous financial year if higher, specifying the methods of quantification of the aforementioned sanction which must "in any case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1, of the Regulation), identifying, for this purpose, a series of elements, listed in paragraph 2, to be evaluated when quantifying the related amount.

As aggravating circumstances to be considered in this case, the following must be taken into account:

1. the high number of subjects involved in the processing for which the Company has not been able to demonstrate the requirements of lawfulness for the commercial activity (such as, information and consent): there are 20,881 telephone numbers provided by Realmaps (13,265 mobile and 7,616 landline) of which approximately 2-3 thousand would have been recipients of promotional contacts (Article 83, paragraph 2, letter a of the Regulation);
2. the severity of the violations detected, with
specifiche comunicazioni promozionali);
b) ai sensi dell'art. 58, par. 2, lett. f) del Regolamento, ordina alla Società di adottare misure correttive per garantire la conformità del trattamento dei dati personali alle disposizioni di legge, con particolare riferimento alla gestione delle istanze di esercizio dei diritti degli interessati e alla fornitura di informazioni adeguate in occasione dei contatti telefonici;
c) ai sensi dell'art. 58, par. 2, lett. i) del Regolamento, ingiunge alla Società di fornire un rapporto dettagliato sulle misure adottate in attuazione delle prescrizioni di cui ai punti a) e b) entro 60 giorni dalla notifica del presente provvedimento;
d) ai sensi dell'art. 58, par. 2, lett. j) del Regolamento, avverte la Società che il mancato rispetto delle prescrizioni di cui ai punti a), b) e c) potrà comportare ulteriori sanzioni amministrative, comprese quelle di cui all'art. 83 del Regolamento.

Milano, [data]

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commercial communications) (arts. 6, 7, and 14 of the Regulation);

b) pursuant to art. 58, par. 2, lett. d) of the Regulation, orders, for the purposes of the information obligation under art. 13 of the Regulation, to provide all the information required therein to the data subjects;

c) pursuant to art. 58, par. 2, lett. d) of the Regulation, orders the adoption of appropriate technical and organizational measures to facilitate the exercise of the rights provided for by the data protection legislation and to satisfy, without undue delay, the related requests, including the right to object that may be exercised "at any time" by the data subject;

d) pursuant to art. 157 of the Code, orders Undici to communicate to the Authority, within thirty days from the notification of this provision, the initiatives undertaken to implement the imposed measure; any failure to comply with the provisions of this point may result in the application of the administrative pecuniary sanction provided for by art. 83, par. 5, of the Regulation.

ORDERS

pursuant to art. 58, par. 2, lett. i), of the Regulation, Undici S.r.l.s., represented by its legal representative, to pay the sum of eight thousand euros (€ 8,000.00) as an administrative pecuniary sanction for the violations indicated in the reasoning; it is noted that the offender, pursuant to art. 166, par. 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to

half of the imposed sanction;

ORDERS

the aforementioned Company, in the event of failure to settle the dispute pursuant to art. 166, par. 8, of the Code, to pay the sum of eight thousand euros (€ 8,000.00), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions in accordance with art. 27 of law no. 689/1981;

DISPOSES

a) pursuant to arts. 154-bis of the Code and 37 of Regulation no. 1/2019, the publication of this provision as well as, pursuant to art. 166, par. 7, of the Code, the publication of this injunction order on the website of the Guarantor;

b) pursuant to art. 17 of the Guarantor's Regulation no. 1/2019, orders the annotation in the internal register of the Authority, provided for by art. 57, par. 1, lett. u) of the Regulation, of the violations and the measures adopted.

Pursuant to art. 78 of Regulation (EU) 2016/679, as well as arts. 152 of the Code and 10 of Legislative Decree no. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the data subject, within thirty days from the date of communication of this provision, or sixty days if the appellant resides abroad.

Rome, April 10, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Cerrina Feroni

THE ACTING SECRETARY GENERAL

Filippi